

BLASPHEMY ACCUSATIONS AND FREEDOM OF EXPRESSION IN NORTHERN SHARIA STATES: CONSTITUTIONALITY AND CONTRADICTIONS IN NIGERIA'S FOURTH REPUBLIC

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Abstract

This study examines the constitutional incoherence produced by enforcing blasphemy norms within a formally secular, rights-based constitutional order in Northern Nigeria's Sharia states. It interrogates how the coexistence of the 1999 Constitution and state-level Sharia criminal codes generates legal ambiguities, weakens procedural safeguards, and fuels extrajudicial responses such as mob violence and selective prosecution. Methodologically, the study adopts the qualitative, doctrinal and interpretative research approach in which constitutional texts, case studies, human-rights reports, and philosophical theories are combined and used as analytical tools. Building on existing theories on natural law, tolerance, justice as fairness, and anthropology of the sacred, along with other scholarly texts, the study identified three constitutional contradictions resulting from the coexistence of blasphemy laws within a formally secular, right-based constitutional order. These contradictions are structural, procedural and normative. The paper also underscores that the coexistence of religious and legal laws within a given secular, right-based Constitution and politicized enforcement undermine constitutional guarantees of freedom of thought and expression. Therefore, the study recommends rights-based legal reform to ensure that religious sensibilities do not eclipse fundamental freedoms essential to a plural democratic Nigerian state. The paper concludes that constitutional supremacy should take precedence over religious laws.

Keywords: Blasphemy, freedom of expression, constitutionality, contradictions, Northern Sharia states, and Nigeria

Introduction

Blasphemy accusations in Northern Nigeria's Sharia states reveal enduring tensions between constitutional democracy and faith-based legal systems, challenging the balance between freedom of expression and religious morality. Since the reintroduction of Sharia criminal codes in 1999, Nigeria's Fourth Republic has witnessed recurrent blasphemy-related prosecutions, mob violence, and extrajudicial punishments, exposing contradictions between constitutional guarantees of freedom of thought and expression as enshrined in Sections 38 and

39 of the 1999 Constitution and the application of Sharia-based criminal statutes in a secular state.

These tensions raise fundamental questions about constitutional supremacy, human-rights compliance, and the legitimacy of dual legal systems within a single sovereign and secular framework. The core problem of this research therefore is the constitutional incoherence produced by enforcing blasphemy norms within a formally secular, rights-based constitutional order. The study addresses the structural, procedural, and normative contradictions that arise when blasphemy accusations based on Sharia laws are adjudicated under parallel secular constitutional order, with one grounded in universal constitutional rights, and the other in religious moral codes. This dualism not only produces constitutional incoherence occasioned by enforcing blasphemy norms within a formally secular, rights-based constitutional order but also violates the secular status of the state thereby eroding public confidence in state institutions. Moreover, it also apparently undermines and restricts the freedom of religions as provided in the Constitution.

The significance of the study lies in its efforts to unravel the structural, procedural and normative contradictions resulting from enforcing blasphemy laws within a formally secular, rights-based constitutional order in Northern Nigeria's Sharia states. It also seeks to fill the scholarly gap of limited integrative analyses that combine constitutional and blasphemy laws. The research will also offer concrete reform pathways that are appropriate to safeguard human-rights and strengthen democratic order.

Methodology

Methodologically, the study adopts the qualitative research design used mostly in the humanities to analyze qualitative data. This approach is important because it allows for a critical analysis of cases of blasphemy accusations, freedom of expression, and constitutional provisions in Nigeria using doctrinal and interpretive tools. This mixed interpretative design allows for empirical insight into how law, religion, and politics interact in shaping public responses to alleged blasphemy in Northern Sharia states in Nigeria. However, the analysis is strictly limited to blasphemy accusations shaped by Sharia law in northern states of Nigeria and its attendant consequences to freedom of expressions as enshrined in the 1999 Constitution. In essence, the study is qualitative, doctrinal, and interpretive in approach.

Theoretical Framework and Conceptual Clarity

Clearly, the intersection of blasphemy accusations and freedom of expression in Northern Nigeria's Sharia states presents a deeply layered philosophical, moral, and constitutional dilemma. Arguably, the issue transcends mere legal analysis and raises fundamental questions about the legitimacy of laws, the moral basis of justice, the limits of tolerance, and the place of religion in a plural society. To illuminate these tensions, this research draws upon four interrelated theoretical perspectives.

The first is the *natural law theory* which asserts that legitimate law derives from moral reason and reflects humanity's participation in divine order. A key proponent of this theory is

Thomas Aquinas who in his *Summa Theologica* maintains that human laws are only just when they align with reason and promote the common good. Laws that deviate from rational justice lose their binding moral force, even if they claim religious sanction (Aquinas, 1265-1274). The implication of this theory is that it challenges the moral validity of blasphemy laws that result in violence, capital punishment, or suppression of conscience. In this case, a law, whether civil or religious, must be judged by its conformity to rational morality and its capacity to uphold human flourishing, and where this is lacking then such law(s) lack moral validity as the case with blasphemy laws in northern sharia states in Nigeria.

A second theory relevant to this study is the *theory of tolerance* which states that civil government exists to safeguard life, liberty, and property, not to enforce spiritual truth. Therefore, genuine faith according to John Locke must be voluntary, and not coercive (Locke, 1689). The relevance of this theory is that it is opposed to any system which allows state's enforcement of religious orthodoxy through punitive measures. Unfortunately, in the context of Nigeria, accusations of blasphemy shaped by Sharia law often blend personal piety with political enforcement thus undermining the constitutional principle of freedom of expression as a safeguard against religious coercion.

Another important theory relevant to this study is the one by John Rawls which advocates turning a blindfold fashion to diverse religious doctrines during formulation of legal laws in what is now generally referred to as “veil of ignorance”- a phenomenon in which citizens design laws without reference to religion, ethnicity, or status (Rawls, 1971). The implication of this is that, no rational individual would endorse laws privileging one faith's sanctity over another's right to free expression. Instead, a plural state most certainly pursues the establishment of equal basic liberties - freedom of speech, freedom of movement, freedom of religion, equal social and economic opportunities, basic necessities of life, etc. The implication of this theory is that laws in a plural democracy must be justified by reasons accessible to all citizens, not by sectarian or religious doctrines and when this is applied to the Nigerian context, it exposes the constitutional contradiction of a secular state enforcing religious law as the case with blasphemy laws in northern Sharia states and freedom of expression in the Nigerian constitution. In this sense, the moral burden of faith should neither be allowed to undermine equal liberty for all, nor should the individual liberty undermine the faith of a community.

But more than that, there is another framework which perfectly applies to this research. This is the *anthropology of the sacred* which states that in religious societies, speech is not merely *expressive* but *performative*. Most notable proponent of this theory is Talal Asad who unequivocally argues that words can inflict moral harm or desecrate the sacred order. Consequently, blasphemy is perceived not only as offense but as a spiritual injury that disrupts communal integrity (Asad, 2009). This explains why Western conceptions of free speech as neutral expression often clash with Islamic moral sensibilities. This happens because for many religious believers, defending religion or sacred texts transcends personal sentiment to an act of preserving divine and communal honor. In this case, promoters of blasphemy laws may tend to see it as a way of preserving divine moral imperatives of the religious community in which they belong. However, the problem is that blasphemy accusations as the case in Nigeria has shown, often serve political purposes, suppress dissent, or assert religious dominance rather than

preserve the sacredness of the religious community. Hence, caution must be exercised against reducing such conflicts to legal transgressions alone. Instead, it should be seen as deeply tied to power, identity, and the moral imagination of the community.

Taken together these theories, it could be argued that their convergence reveals that the crisis of blasphemy and freedom of expression is not simply a legal or religious controversy, but a profound moral negotiation over the limits of law, the sanctity of belief, and the dignity of human reason. Ultimately, these theoretical frameworks advance the argument that reconciling freedom of expression with religious sensitivity requires more than legal reform. It demands a philosophical balance between divine reverence, human dignity, and communal peace. Natural law insists that justice must align with moral reason. Tolerance demands respect for conscience. Fairness requires impartiality and the anthropology of the sacred reminds us that faith cannot be detached from culture. Together, they provide the conceptual scaffolding through which the constitutionality and contradictions of blasphemy accusations and freedom of expression in Northern Nigeria can be critically understood and ethically reimaged. In the next section, we shall examine the issue in a more conceptual way.

Literature Review

A concept can easily be misunderstood if it is not properly defined during a research. Hence, it is appropriate to conceptualize the term “blasphemy” as used in this context. To start with, Melody (1907)'s encyclopedic entry defines blasphemy as gross irreverence toward God and primarily a sin of speech. Drawing on biblical, classical, scholastic, canon and common-law sources, Melody documents historical sanctions which include biblical stoning, medieval penances, early modern fines and corporal punishments as consequences of blasphemy for those culpable of it.

A more historical development is given by Vile (2024) who traces the origin of blasphemy from biblical to classical sources through English and early American practice, citing the Danish Cartoons among others as modern flashpoints that show how offence-based regulation can produce long-term security risks and a “terrorist veto” on publication.

The Human Rights First, (2011) reports on the basis of extensive cross-national case documentation, that laws protecting religions rather than individuals systematically produce human-rights abuses and frequently sparks mob violence, extrajudicial killings, prolonged arbitrary detention, and denial of due process for the accused. Drawing on over one hundred documented cases from countries including Pakistan, Indonesia, Egypt and Nigeria, the authors show recurring patterns like fabricated complaints, denial of bail, intimidation of judges and lawyers, and state failure or complicity in protecting accused persons and minority communities. The report therefore concludes that criminalizing blasphemy provisions hinder free expression, disproportionately harm religious minorities, and undermine rule-of-law protections. Thus, it recommends among other things decriminalization, stronger protection for accused persons and independent adjudication, and investment in education and interfaith measures as possible solution.

Rather than resting on definitions and historicity, Loft & Robinson (2022) surveys the

prevalence, enforcement and consequences of blasphemy laws across Commonwealth countries, using government reports, case summaries, parliamentary questions and press coverage to show how offence-based statutes are both widespread and unevenly enforced. The findings reveal patterns of misuse, false or vindictive accusations, mob violence, disproportionate punishments, and selective prosecutions. Also, it highlights recent, high-profile Nigerian cases including vigilante killings and sharia court sentences, and a 2022 secular-court ruling upholding state sharia provisions. Moreover, the report situates Nigerian developments within broader Commonwealth trends, and provides a compact evidence-base for policymakers and researchers.

Contrary to views about blasphemy, freedom of expression has been conceived as a fundamental component of democratic life and human dignity. Hence, Bonotti and Seglow (2021) observe that freedom of expression is indispensable for individual autonomy, moral development, and public participation in rational discourse. However, this freedom is neither boundless nor immune to ethical scrutiny; instead, it operates within the limits of social responsibility and respect for communal harmony.

Writing on the concept of “ecology of freedom of expression,” that is, the complex global landscape shaping *freedom of expression* in the digital age, Dutton et al. (2010) observe that legal and regulatory measures designed for other objectives such as security, morality, or cultural preservation can unintentionally curtail freedom of expression. Nonetheless, sustainability of expressive freedom depends on transparent laws, responsible governance, and societal commitment to balance competing values within a democratic framework.

Drawing inferences from Article 10 of the European Convention on Human Rights, Bychawska-Siniarska (2017) conceives freedom of expression as one of the essential foundations of a democratic society noting that it is not only an individual right but also a collective guarantee that sustains democracy, accountability, and social progress. Thus, it may be legitimately restricted only when necessary in a democratic society to protect public order, morals, or the rights of others.

An interesting perspective about freedom of expression is provided by the Centre for Law and Democracy and International Media Support (2014), which identifies three-part test for lawful restrictions namely: legality, legitimacy, and necessity/proportionality. Drawing on comparative jurisprudence and state practice, it emphasizes that offence-based or morality-driven criminal provisions stifle legitimate expression, enable selective enforcement, and disproportionately marginalize minority voices and the media. Overall, it proposes civil and educational remedies to address reputational or religious sensitivities.

The Equality and Human Rights Commission (2021) guidance on Article 10 affirms that freedom of expression encompasses the right to hold and communicate opinions across all forms of media but acknowledges that it is not absolute. Restrictions are lawful only when prescribed by law; pursue a legitimate aim such as national security, public safety, public order, or protection of others' rights that are demonstrably necessary and proportionate. Contrary to this, Ishola (2024) observes that Nigeria's legal system marked by the coexistence of the 1999

Constitution and state-level Sharia systems produces jurisdictional ambiguity that undermines due process and fosters extrajudicial violence in blasphemy-related cases particularly in Kano and Sokoto states.

Explaining further on the Nigerian situation, Koko (2020) submits that religious security is an important aspect of national security of any nation and as such the stability of the Nigerian nation should be given maximum consideration. This is crucial because presently there are evidences of abuse of religious freedom in Nigeria's public space that pose a threat to national security particularly in the northern region of the country. A clear case in view was the September 10, 2001 inter-religious crisis in Jos Plateau State (Koko, 2020). It is expected that in a religiously pluralistic context like Nigeria where Islam and Christianity compete for hegemony, the principles of religious pluralism namely equal recognition of all religions, neutrality, and freedom of all religions should be respected to promote national cohesion, consensus, peace and stability (Koko, 2022; 2023). However, the reverse has been the case as there are clear cases of institutionalization of Sharia as a state legal code in Northern Nigeria leading to deep constitutional contradictions and systemic discrimination against non-Muslims as Okhifoh (2021) observes.

This situation is further complicated by the fact that Nigeria's blasphemy laws, reveals how vague statutory language, overlapping application of the Penal Code, Criminal Code, Sharia law, and weak enforcement mechanisms foster wrongful prosecutions, mob violence, and the erosion of fundamental rights. The Deborah Yakubu incident is clear evidence on how these laws privileged communal sensibilities over constitutional guarantees, generating doctrinal and jurisdictional contradictions (Chima, 2025). Therefore, it is safe to agree with Abdulazeez (2016), that the rise of extrajudicial “jungle justice” in northern Sharia states stems from partly the failure, institutional decay, and contradictions of Nigeria's legal system. Hence, the urgent need for coordinated reforms to restore legal order and public trust among citizens.

In all it could be said that the review on blasphemy supplies contemporaneous case evidence, legislative context, and comparative examples that illuminate how legal design, enforcement practices, and political responses produce constitutional tensions and recurrent threats to minority speech often label as blasphemy. In this context, blasphemy should be taken as any derogatory speech used to describe religious figures, sacred text or God. Similarly, the review also affirms that freedom of expression is vital to constitutional democracy. However, it must be balanced with legitimate social interests. Comparative insights reveal that offence-based criminalization undermines pluralism and justice, offering critical lessons for reconciling Nigeria's constitutional guarantees with Sharia-based restrictions on blasphemy and freedom of expression. In the next section, we shall examine specifically on some scholarly perspectives on historical context of blasphemy related violence and freedom of expression in Nigeria.

Historical Context of Blasphemy Violence in Nigeria

Historically, several concerns have been expressed on the contradictions between blasphemy laws and freedom of expression in the Nigerian 1999 constitution. Since Nigeria's return to democratic rule in 1999 and the re-introduction of full Sharia criminal codes in twelve Northern states, accusations of blasphemy have increasingly triggered mob violence, public

lynching, and extrajudicial killings. While these incidents target both men and women, the female gender has been particularly exposed to lethal and symbolic violence probably because of entrenched patriarchy, distorted religious interpretations, and institutional failures that normalize impunity. Historical antecedents of two decades demonstrate how blasphemy accusations in Northern Nigeria have resulted to mob violence, extrajudicial killings and public lynching.

One of the earliest large-scale expressions of religious mob violence tied to blasphemy in the Fourth Republic came from the Miss World riots in Kaduna in 2002. It is reported that the violence erupted after *This Day* journalist Isioma Daniel allegedly committed blasphemy while commenting on the pageant (Danfulani, 2005). Over 200 people were killed and churches and mosques burned, and women brutalized in the ensuing chaos. The philosophical problem emerging from this event is the conflict between individual freedom of expression and communal religious morality, raising enduring questions about the limits of liberty within a plural legal and moral system.

Another incidence of killing that further highlighted blasphemy-related violence is the Amina Lawal case of 2002–2003, a woman sentenced to death by stoning for alleged adultery under the Katsina State Sharia Court. Although later acquitted, her trial demonstrated how the legal application of Sharia criminal codes was overwhelmingly given primacy over extant laws in the country and from other religious faiths. Also, like the story of the Biblical woman caught in adultery and acquitted by Jesus in John 8:2-11, the man in this case was not also punished further validating the underlining gender biases of such religious laws.

In 2007, reports of a Christian teacher allegedly desecrating the Qur'an in Bauchi sparked mob attacks that left several people dead, including women and children (Ibrahim, 2011). Similarly, in Kano that same year, a group of Muslim youths lynched a Christian woman accused of blasphemy after a dispute in a local market. In both cases, state authorities failed to protect the victims or prosecute perpetrators. The philosophical dilemma here lies in the state's abdication of its social contract duty to guarantee security, implying that divine retribution supersedes civic justice. Similarly, this situation also subverts the essence of democratic legality and exposes the ontological vulnerability of citizens who exist at the intersection of faith, gender, and minority identity.

A defining case also occurred in Kano in 2016, when Bridget Agbahime, a Christian woman and trader, was publicly lynched by a mob that accused her of committing blasphemy during an argument with a Muslim colleague. Despite global outrage, all five suspects were released “for lack of evidence” (Human Rights Watch, 2016). Bridget's murder illustrates both the fragility of citizen's life under mob rule and the moral hypocrisy of a legal system that selectively enforces justice. It could also be argued that philosophically, the case exposes a deep tension between divine command ethics and human-rights universalism. Within a theocratic moral logic, even defending one's faith should not justify any sort of violence. But most importantly, within a rights-based democratic order, every human life possesses inviolable worth. Therefore, the state's silent approval of mob justice reflects moral relativism institutionalized through weak secular authority (Falola & Heaton, 2008). The failure of

retributive justice in Bridget's case reinforces systemic impunity that emboldens further violence.

Perhaps the most globally recognized blasphemy-related killing was that of Deborah Samuel, a 22-year-old Christian student at Shehu Shagari College of Education, Sokoto, in May 2022. She was beaten and burned by classmates who alleged she committed blasphemy sin. Videos of the killing went viral, showing police officers watching without intervening (Amnesty International, 2022). No one has been convicted for her death till date and this is worrisome. It should be argued that while the Constitution guarantees freedom of expression and at least the right to fair hearing, the Sharia law in Northern Nigeria does not give room for this further demonstrating a serious conflict between sacred and secular laws in Northern Nigeria (Bawa, 2017). It also reveals the problem of epistemic closure in a society where theological certainty eliminates moral reasoning and empathy.

Finally, recent reports show continued extrajudicial violence in Niger, Bauchi, and Sokoto States (Daily Trust, 2025). In some cases, widows of alleged blasphemers were expelled from communities notwithstanding their rights of citizenship enshrined in Nigerian constitution. Others were assaulted for defending victims without minding their rights to freedom of expression. The persistence of these attacks underscores how social institutions, religious authorities, law enforcement, and local governments fail to protect citizens' existential security. These incidences directly contradict the freedom of expression provided in the Constitution as we shall discuss below.

Analysis and Discussion of Constitutional Contradictions

The constitutionality of blasphemy accusations in Northern Nigeria's Sharia states is deeply contested, judging from the coexistence of two normative systems: the 1999 Constitution (as amended), which guarantees secularism and fundamental rights on the one hand, and state-level Sharia legal codes, which criminalize acts considered offensive to Islam on the other. Arguably, this duality generates a constitutional paradox in that while the Constitution, particularly, Sections 38 and 39 protect *freedom of thought, conscience, religion, and expression*, several Sharia-based provisions especially those derived from interpretations of *hudud* and *ta'zir* offences punish speech or actions deemed blasphemous, often with severe penalties, including death.

With the increase in blasphemy accusations often resulting in mob violence, vigilante justice, and discriminatory prosecutions, particularly the high-profile cases, such as those of *Yahaya Sharif-Aminu* and *Deborah Yakubu*, it has become important to identify and discuss the apparent contradictions of the coexistence of Islamic laws alongside secular laws. For purpose of clarity, it is safe to categorize the accruing contradictions into three namely: structural, procedural, and normative.

Structural Contradictions

Structural contradictions between blasphemy accusations and freedom of expression in Northern Nigeria are rooted in the country's dual legal framework, which fuses constitutional secularism with state-level Sharia implementation.

The 1999 Constitution of the Federal Republic of Nigeria (as amended) guarantees freedom of thought, conscience, religion, and expression (Sections 38 and 39) and prohibits the adoption of a state religion (Section 10), yet twelve Northern states have institutionalized Sharia criminal codes that penalize blasphemy, often with severe sanctions. This coexistence generates jurisdictional ambiguity, eroding legal certainty as enforcement authorities oscillate between constitutional and religious mandates (Ishola, 2024; Okhifoh, 2021; Koko, 2023).

The resulting uncertainty undermines due process, enabling selective prosecution and communal coercion. Empirical studies and human-rights reports (Amnesty International, 2022; Chima, 2025) reveal that officials frequently yield to popular pressure, allowing mob vigilantism such as the killing of Deborah Yakubu in Sokoto in 2022 to replace judicial process.

Fragmentation of legal authority also weakens procedural safeguards, with inconsistent standards of evidentiary thresholds, and punishments across jurisdictions. Consequently, constitutional rights to expression and fair trial remain aspirational, particularly when local religious sentiment supersedes federal supremacy (Section 1(3) of the Constitution).

Comparative analysis by the Venice Commission (2008) underscores that only intentional incitement to violence or hatred should attract criminal sanction, warning that vague offence definitions hinder legitimate expression. Nigeria's continued retention of overlapping and ambiguous blasphemy provisions therefore institutionalizes conflict between secular and religious authority, producing structural contradictions that compromise the rule of law, embolden extrajudicial punishment, and endanger freedom of expression in its Northern Sharia states.

Procedural Contradictions

Procedural contradictions in blasphemy cases within Northern Nigeria's Sharia states systematically erode formal guarantees of justice and thereby magnify threats to freedom of expression. Although the Constitution and international standards promise fair-trial protections, empirical studies and rights reports show that arrest, detention and adjudication frequently follow divergent, politicized and extra-legal paths such that police and prosecutors often act on vague complaints without judicial authorization, non-bailable detention and prolonged pre-trial custody are common, and accused persons frequently religious minorities or dissenters face restricted access to counsel and evidentiary review (Ishola, 2024; Okhifoh, 2021; Amnesty International, 2022).

Parallel procedural regimes like state Sharia tribunals, Penal/Criminal Code processes and informal community adjudication produce inconsistent standards for burden of proof and admissible evidence, enabling selective enforcement and facilitating convictions or mob punishment without rigorous legal scrutiny (Rehman, 2010; Talha et al., 2023). Prosecutorial discretion is often exercised under political or communal pressure, while weak judicial oversight and slow, politicized trials create incentives for extra-judicial “jungle justice” that preempts due process (Abdulazeez, 2016; Nundy, 2023).

Comparative authorities, including the Venice Commission, stress that criminal law should require intent to incite violence and be buttressed by procedural safeguards such as

judicial authorization for arrests, prosecutorial filters, speedy trials and sanctions against malicious accusers to prevent abuse (Venice Commission, 2008). Reform proposals grounded in empirical evidence therefore emphasize uniform evidentiary thresholds, mandatory judicial review before detention, strengthened legal aid and witness protection, expedited adjudication for sensitive offences, and clear statutory limits on extrajudicial interventions; without such measures, procedural fragmentation will continue to transform blasphemy accusations into instruments of persecution rather than subjects of impartial legal process (Chima, 2025; Talha et al., 2023). Regrettably, the situation in the north with regards to blasphemy accusations points to a lack of due process, instead it gives room to extrajudicial killings of innocent persons. This is not healthy for the country.

Normative Contradictions

Normative contradictions in the handling of blasphemy accusations within Northern Nigeria's Sharia states expose deep tensions between competing moral orders, that is, the secular-constitutional ideal of rights-based pluralism and the theocratic logic of communal moral regulation. While the 1999 Constitution guarantees freedom of thought, conscience, and expression (Sections 38 and 39), the application of Sharia-based blasphemy laws enforces a moral code rooted in religious orthodoxy, privileging collective sanctity over individual liberty (Okhifoh, 2021; Koko, 2022; Chima, 2025).

This duality creates a normative paradox: acts deemed constitutionally protected expression under Nigeria's supreme law are simultaneously criminalized under subnational religious norms, producing contradictory legal and ethical expectations for citizens. And as scholars argue, this dualism erodes constitutional supremacy, normalizes moral majoritarianism, and fractures civic identity by aligning legal legitimacy with religious conformity (Ishola, 2024; Pérez de la Fuente, 2020).

The moral absolutism underpinning blasphemy laws where offence to belief is equated with harm to community directly conflicts with liberal-democratic doctrines of public reason and universal rights, as articulated in Rawlsian and Habermasian frameworks that demand neutrality of state justification in diverse societies (Pérez de la Fuente, 2020; Rawls, 1993; 2023).

This contradiction legitimizes unequal protection, as minority or dissenting voices become inherently suspect within a communitarian moral hierarchy. Comparative insights from Nundy (2023) and Talha et al. (2023) further demonstrate that offence-based legal norms lack normative coherence with modern constitutional democracies, which emphasize incitement, intent, and proportionality over moral offence.

Resolving these normative contradictions therefore requires constitutional harmonization, legal education promoting tolerance, and reinterpretation of Sharia enforcement within a rights-consistent framework that reconciles moral conviction with pluralist constitutionalism without which Nigeria's democratic order remains normatively divided and

jurisprudentially unstable.

Conclusion and Recommendations

In conclusion, blasphemy accusations in Northern Nigeria's Sharia states expose deep constitutional and institutional contradictions within the Fourth Republic. The coexistence of secular constitutional guarantees and religious criminal statutes undermines legal certainty, erodes due process, and constrains freedom of expression. Weak procedural safeguards, politicized enforcement, and communal pressures have normalized extrajudicial punishments and selective justice, revealing tensions between faith-based morality and constitutional pluralism. Resolving these contradictions requires harmonization of Sharia and constitutional law, judicial independence, and rights-based legal reform to ensure that religious sensibilities do not eclipse fundamental freedoms essential to Nigeria's democratic and pluralist order. In all, constitutional supremacy should take precedence over religious laws.

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